

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4260

By: Hays, **Deck**, and **Adams** of
the House

and

Frix of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to workers' compensation; creating
12 claims for certain medical episodes for certain first
13 responders; providing framework for claims; providing
14 for rebuttable presumption; providing for a sunset;
15 providing for codification; and providing an
16 effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 127 of Title 85A, unless there
20 is created a duplication in numbering, reads as follows:

21 ACUTE MYOCARDIAL INFARCTION OR STROKE.

22 A. A firefighter, peace officer, or emergency medical
23 technician who suffers an acute myocardial infarction or stroke
24 resulting in disability or death is presumed to have suffered the

1 disability or death during the course and scope of employment as a
2 firefighter, peace officer, or emergency medical technician if:

3 1. While on duty, the firefighter, peace officer, or emergency
4 medical technician:

5 a. was engaged in a situation that involved stressful or
6 strenuous physical activity involving fire
7 suppression, rescue, hazardous material response,
8 emergency medical services, law enforcement, or other
9 emergency response activity, or

10 b. participated in a training exercise that involved
11 stressful or strenuous physical activity, and

12 2. The acute myocardial infarction or stroke occurred not later
13 than eight (8) hours after the end of a shift in which the
14 firefighter, peace officer, or emergency medical technician was
15 engaged in the activity described in paragraph 1 of this subsection.

16 B. There shall be a rebuttable presumption that the medical
17 events described in subsection A of this section arose out of the
18 employment performed by the person and occurred while the employee
19 was acting within the scope of employment. This presumption may be
20 overcome by clear and convincing evidence.

21 C. For purposes of this section, "stressful or strenuous
22 physical activity" does not include clerical, administrative, or
23 nonmanual activities.

1 D. For purposes of this section, "firefighter", "peace
2 officer", and "emergency medical technician" mean only those
3 individuals employed by the state, a county, a municipality, or any
4 other political subdivision of this state.

5 E. This section shall cease to have full force and effect in
6 law on November 1, 2031, to allow for a full legislative review of
7 the fiscal impact.

8 SECTION 2. This act shall become effective November 1, 2026.

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10 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
11 OVERSIGHT, dated 02/26/2026 - DO PASS, As Amended and Coauthored.
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